

JUDGE JONES

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

11 CIV 3739

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JESSE JONES,

Plaintiffs,

COMPLAINT

XX CV XXXX

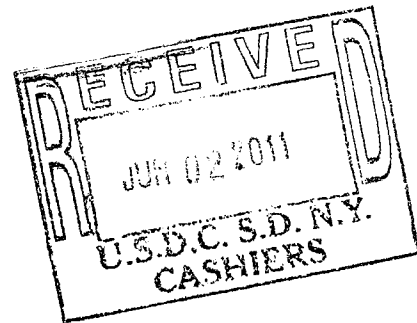
JURY TRIAL DEMANDED

-against-

ECF CASE

THE CITY OF NEW YORK, Police Officer Chase Maneri, Shield #23839, individually and in his Official Capacity, Police Officer Michael Vecchi, Shield #17615, individually and in his Official Capacity, and P.O.'s "JOHN DOE" #1-10, individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown).

Defendants.
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Plaintiff JESSE JONES, by his attorney, The Law Office of Robert W. Georges, Esq. complaining of the defendants, respectfully allege as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331 and 1343.

VENUE

4. Venue is properly laid in the Southern District of New York under U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiffs respectfully demand a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff JESSE JONES is an African American male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.

7. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York.

9. That at all times hereinafter mentioned P.O. CHASE MANERI, P.O. MICHAEL VECCHI and P.O.'s "JOHN DOE" #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. That at all times hereinafter mentioned the defendant, either personally or

through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

11. Each and all of the acts of the defendant alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

13. On or about December 2, 2010 at approximately 3:56 A.M., the plaintiff was lawfully present on a public street at Broadway and West 143rd Street, in the County and State of New York.

14. At the aforementioned time and place, defendant police officers approached the plaintiff on his right side and instructed him to drop what he was holding in his right hand.

15. At the aforementioned time and place, plaintiff complied with defendant police officers instructions and dropped said object to the ground.

16. Upon information and belief, said object was not an illegal substance and in no way resembled one.

17. At the aforementioned time and place, defendant police officers picked said object up from the ground and placed defendant in handcuffs.

18. Notwithstanding the lack of any evidence or contraband found on plaintiff or

found within his custody and control, defendants arrested plaintiff and charged him with Criminal Possession of a Controlled Substance in the Seventh Degree.

19. The plaintiff never possessed or controlled any contraband, controlled substance or narcotic.

20. At his criminal court arraignment on or about December 3 2010, bail was set and the plaintiff was held by the Department of Corrections until his next court appearance on December 7, 2010.

21. On December 7, 2010, in Criminal Court Part SA, in front of the Honorable R. Mella, all of the charges pending against the plaintiff were dismissed and sealed upon application of the District Attorney. In total, plaintiff spent approximately five (5) days or one hundred and twenty eight (128) hours in jail before the case was dismissed and he was released.

22. As a result of his unlawful arrest, plaintiff was violated under the terms of his parole and as such was wrongfully incarcerated on a parole hold from approximately December 14, 2010 until February 18, 2011, a period of approximately sixty six (66) days, or one thousand five hundred and eighty four (1584) hours.

23. In connection with the plaintiff's arrest, defendants filled out false and misleading police reports and forwarded them to the prosecutors at the District Attorney's Office.

24. Thereafter, defendants gave false and misleading testimony regarding the facts and circumstances of plaintiff's arrest.

25. As a result of the foregoing, plaintiff sustained, *inter alia*, loss of liberty,

mental anguish, shock, fright, apprehension, embarrassment and humiliation, and deprivation of his constitutional rights.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

26. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "25" with the same force and effect as if fully set forth herein.

27. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

28. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

29. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all of the actual and/or apparent authority attendant thereto.

30. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

31. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

32. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "43" with the same force and effect as if fully set forth herein.

33. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

34. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER U.S.C. § 1983

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "34" with the same force and effect as if fully set forth herein.

36. Defendants misrepresented and falsified evidence before the District Attorney.

37. Defendants did not make a complete and full statements of facts to the District Attorney.

38. Defendants withheld exculpatory evidence from the District Attorney.

39. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff JESSE JONES.

40. Defendants lacked probable cause to initiate criminal proceedings against

plaintiff JESSE JONES.

41. Defendants acted with malice in initiating criminal proceedings against plaintiff JESSE JONES.

42. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff JESSE JONES.

43. Defendants lacked probable cause to continue criminal proceedings against plaintiff JESSE JONES.

44. Defendants acted with malice in continuing criminal proceedings against plaintiff JESSE JONES.

45. Defendants misrepresented and falsified evidence throughout all phases of criminal proceedings.

46. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff JESSE JONES's favor on or about December 7, 2010, when all charges against him were dismissed.

47. As a result of the foregoing, plaintiff JESSE JONES's liberty was restricted for an extended period of time, and he was put in fear of his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

FIFTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY

48. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "47" with the same force and effect as if fully set forth herein.

49. Defendants, collectively and individually, while acting under color of state law,

engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

50. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, a) failing to recognize the odor of cocaine; b) failure to recognize the appearance and packaging of cocaine, and c) failing to properly field test the substance recovered prior to arresting the plaintiff and signing the Criminal Court complaint.

51. The forgoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

52. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

53. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully arrested and detained, and subjected to excessive force.

54. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

55. The acts complained of deprived plaintiff of his rights:

- A. Not to be deprived of liberty without due process of laws;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from malicious abuse of process;

- D. To be free from unlawful search;
- E. Not to have summary punishment imposed upon them; and
- F. To receive equal protection under the law.

56. As a result of the foregoing, plaintiff is entitled to compensatory damages in the sum of one million dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual defendants in the sum of one million dollars (\$1,000,000.00).

WHEREFORE, plaintiff JESSE JONES, demands judgment in the sum of one million dollars (\$1,000,000.00) in compensatory damages and one million dollars (\$1,000,000.00) in punitive damages, plus reasonable attorney's fees, costs, and disbursements of this action.

Dated: New York, New York
May 31, 2011

Respectfully submitted,

The Law Office of
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